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Case No:

25NNCV08015

Hearing Date: 08/27/2026 – 8:30 a.m.

Trial

Date: UNSET

Case

Name: MICHELLE TRAFFICANTE v. SERGIO SECHE and TAMMIE SECHE

[TENTATIVE RULING MOTION TO STRIKE]

RELIEF REQUESTED

Defendants, Sergio Seche and Tammie Seche, move to strike the following language from Plaintiff's Complaint:

(1) Page 1, at caption "B. Punitive Damages";

(2) Page 9, Prayer, "(3) attorneys fees as to first cause of action only".

(Def. Mot., p. 1.)

Defendants

motion is brought pursuant to CCP §§ 435 and 436, on grounds that the

above-referenced language constitutes irrelevant, false, or improper matter, conclusions of law, items of non-recoverable damages, and/or are not supported by the facts.

PROCEDURAL

Moving Party: Defendants,
Sergio Seche and Tammie Seche

Responding Party: No opposition by Plaintiff

Moving Papers: Motion to Strike

Opposition Papers: No opposition
submitted

Reply Papers: No reply submitted

Meet and Confer

As explained in the CCP, section 435.5:

Before filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike. If an amended pleading is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a motion to strike the amended pleading.

(CCP, § 435.5(a).)

“A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (CCP, § 435.5(a)(4).)

Here, Defendants' counsel met and conferred. (See Giudice-Hu Decl., ¶ 3.)

LEGAL

STANDARD – MOTION TO STRIKE

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP, § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (CCP, § 436(b).)

A motion

to strike cannot be based upon the grounds that a complaint fails to state facts sufficient to constitute a cause of action, but instead is properly based on grounds of superfluous or abusive allegations, or improprieties in form or procedure. (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528-29.)

The

grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP, § 437; Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63 [“judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth”].)

Further, CCP § 431.10(a)-(c) states as follows:

(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An immaterial allegation in a pleading is any of the following:

(1) An allegation that is not essential to the statement of a claim or defense.

(2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense.

(3) A demand for judgment requesting

relief not supported by the allegations of the complaint or cross-complaint.

(c) An “immaterial allegation” means
“irrelevant matter” as that term is used in Section 436.

(CCP, § 431.10(a)-(c).)

TENTATIVE RULING MOTION TO STRIKE

Punitive Damages

Plaintiff, Michelle Trafficante, filed
the instant action on 11/12/2025 against Defendants – (1) Sergio Seche and (2)
Tammie Seche.

Plaintiff's action stems from an alleged
dog bite that Plaintiff suffered at Defendants' residence.

Plaintiff alleges that her husband was
trimming a tree at Plaintiff's residence and that Plaintiff's husband asked Plaintiff
to contact Defendants so a dead branch would not fall on Defendants' car. (See
Compl., ¶ 15.)

Plaintiff alleges that she did not have
Defendants' phone number and that going to Defendants' home was the only way to
advise Defendants about the potentially hazardous branch. (See Compl., ¶ 16.)

Plaintiff alleges that in order to
reach the front door of Defendants' residence, it is necessary to walk through
Defendants' front gate. (See Compl., ¶ 17.)

Plaintiff alleges that after calling
out “hello” a few times through the gate and hearing nothing, she turned the
unlocked knob to the gate and lawfully entered Defendants' property. (See
Compl., ¶¶ 17-18.)

Plaintiff alleges that the gate did
not have a “No Trespassing” sign, nor any indication that no one was to enter.
(See Compl., ¶ 18.)

Plaintiff alleges that after entering a few steps after the gate, a medium sized, brown, mixed pit-bull lunged at her and bit her forearm/wrist, abdomen, and ankle. (See Compl., ¶ 20.)

Plaintiff alleges she withstood a displaced open fracture of the right ulna, puncture wounds, lacerations, nerve injury, and emotional trauma. (See Compl., ¶ 23.)

Plaintiff's Complaint labels the first cause of action as a claim for "Strict Liability – Dog Bite (Cal. Civil Code § 3342)."

Plaintiff's second cause of action is for negligence.

Defendants seek to strike the request for punitive damages that are located on the first page of the Complaint.

Defendants argue that there was in fact a "No Trespassing" sign or other sign warning people not to enter.

Defendants argue that Plaintiff's Complaint does not plead any facts that demonstrate malice, oppression, or fraud.

Defendants argue that Plaintiff's Complaint pleads legal conclusions and that it does not allege sufficient facts to provide a basis for imposing punitive/exemplary damages.

Here, the Court will hear argument.

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example by way of punishing the defendant. (Civ. Code, § 3294(a).)

"'Malice' means conduct

which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294(c)(1).)

"'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294(c)(2).)

"'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294(c)(3).)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal. App. 4th 1253, 1255.) Conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud or malice. (Smith v. Sup. Ct. (1992) 10 Cal. App. 4th 1033, 1042.)

Here, Plaintiff's Complaint does not explicitly use the words of "malice," "oppression," or "fraud" to describe Defendants' conduct.

However, in paragraph 30 of Plaintiff's Complaint, Plaintiff alleges that "Defendants knew or reasonably should have known that their Dog posed a risk of harm to persons lawfully approaching their property, yet they allowed the Dog access to the front yard and entryway where it could attack unsuspecting individuals." (Compl., ¶ 30.)

Assuming the truth of Plaintiff's allegations, it appears that if Defendants knew that their dog posed a risk of harm to persons lawfully approaching their property, yet allowed the dog access to the front yard where it could attack unsuspecting individuals, then the aforementioned conduct by Defendants could potentially be found to be oppressive by a jury.

“Malice and oppression may be inferred from the circumstances of a defendant’s conduct.” (Monge v. Superior Court (1986) 176 Cal.App.3d 503, 511.)

Although the Court is inclined to DENY Defendants’ motion to strike punitive damages, the Court will hear argument because the mention of punitive damages is located in the caption on the first page of the Complaint within the first cause of action; however, the allegations that Defendants knew their dog posed a risk of harm is alleged in paragraph 30, and the allegations in paragraph 30 are located within the second cause of action.

Attorney’s
Fees

Defendants
move to strike Plaintiff’s request for attorney’s fees in the Complaint’s Prayer for Relief.

The
Complaint alleges that the attorney’s fees request pertains to the first cause of action only, strict liability/civil code § 3342.

Defendants
argue that the Complaint is devoid of any allegations establishing that Plaintiff is entitled to attorney’s fees.

Here,
the Court is inclined to GRANT Defendants’ motion to strike ¶ 3 in the Complaint’s Prayer for Relief which states, “For attorneys’ fees as to the first cause of action only.”

“Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided.” (CCP, § 1021.)

Here, Plaintiff does not submit an
opposition to Defendants’ motion to strike.

When the Court reads Civ. Code § 3342,
the Court does not see that Civ. Code § 3342 authorizes attorney's fees.

Thus, the Court is inclined to GRANT
Defendants' motion to strike the Complaint's request for attorney's fees
located in the Prayer for Relief. At the hearing, since no opposition was
submitted, the Court will hear argument as to if Defendants served Plaintiff
the instant motion at the proper address. Further, the Court will hear argument
on leave to amend.